

Provided further that no request for weighment of consignment in wagon load or train –load shall be allowed if the weighment is not feasible due to congestion in the yard or such other circumstances as may be prescribed.

Comment

Section 79 provides for weighment of consignment at the request of the consignee or the endorsee and the circumstances under which such weighment may not be permitted.

80. Liability of railway administration for wrong delivery :

Where a railway administration delivers the consignment to the persons who produce the railway receipt, it shall not be responsible for any wrong delivery on the ground that such person is not entitled thereto or that the endorsement on the railway receipt is forged or otherwise defective.

Comment

Section 80 absolves the railway administration from liabilities for delivery of consignment on production of railway receipt.

81. Open delivery of consignments : Where the consignment arrives in a damaged condition or shows signs of having been tampered with and the consignee or the endorsee demands open delivery, the railway administration shall give open delivery in such manner as may be prescribed.

Comment

Section 81 provided for open delivery of consignment if received in damaged condition.

82. Partial delivery of consignment :

(1) The consignee or endorses shall, as soon as the consignment or part thereof is ready for delivery, take delivery of such consignment or part thereof notwithstanding that such consignment or part thereof is damaged.

(2) In the case of partial delivery under sub-section (1) the railway administration shall furnish a partial delivery certificate, in such form as may be prescribed.

(3) If the consignee or endorsee refuses to take delivery under sub-section (1), the consignment or part thereof shall be subject to wharfage charges beyond the time allowed for removal.